

26PSCV00208 26PSCV00208

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Case Number: 26PSCV00208 Hearing Date: August 20, 2026 Dept: G

Defendant

Lung Ling Chen's Motion to Set Aside Default and Default Judgment, If Entered

Respondent:

Plaintiff SLX Property LLC

TENTATIVE

RULING

Defendant

Lung Ling Chen's Motion to Set Aside Default and Default Judgment, If Entered,
is DENIED.

BACKGROUND

This

is an action for breach of contract. On

May 25, 2021, defendant Lung Ling Chen (Chen) allegedly entered into a lease
with plaintiff SLX Property LLC (SLX) for real property in Hacienda Heights,
California. On June 30, 2022, Chen

allegedly moved out of SLX's property after failing to pay rent. On November 18, 2025, SLX allegedly sent Chen
a final demand letter for outstanding rent.

On

January 20, 2026, SLX filed the Complaint, alleging causes of action for (1)
breach of contract and (2) common counts.

On

April 1, 2026, the court entered default against Chen. On June 22, 2026, Chen filed this motion to set aside entry of default. On July 9, 2026, SLX filed the opposition. On July 13, 2026, the court continued the hearing on the motion based on Chen's failure to file a proof of service with the motion. On August 6, 2026, SLX filed the second opposition. There is no reply.

This

case is set for a default prove-up hearing and/or order to show cause re: default judgment and a continued hearing on the motion on August 20, 2026.

ANALYSIS

Chen

moves to set aside the entry of default and vacate any resulting default judgment. For the following reasons, the motion is DENIED.

Legal

Standard

When

service of a summons has not resulted in actual notice to a party in time to defend the action and a default has been entered against them, they may serve and file a notice of motion to set aside the default and for leave to defend the action. (Code Civ. Proc., § 473.5, subd. (a).) A motion made under Section 473.5 is timely if it is filed within two years of the default judgment issued against the party or 180 days of service of the notice of the default or default judgment, whichever is earlier.

(Ibid.) Upon a finding by

the court that the party's lack of actual notice in time to defend the action was not caused by their avoidance of service or inexcusable neglect, it may set aside the default or default judgment on whatever terms as may be just and allow the party to defend the action.

(Code Civ. Proc., § 473.5, subd. (c).)

Courts

only require "slight evidence" to support vacating a default and resolve all doubts in favor of the party seeking relief.

(Kramer v. Traditional Escrow, Inc. (2020) 56 Cal.App.5th 13, 28.) “The only occasion for the application of [S]ection 473 is where a party is unexpectedly placed in a situation to [their own] injury without fault or negligence of [their] own and against which ordinary prudence could not have guarded.” (Hearn v. Howard (2009) 177 Cal.App.4th 1193, 1206.)

Discussion

Chen

argues that service of process did not give him actual notice, and the failure to respond was neither willful nor due to inexcusable neglect. The court disagrees.

According

to the proof of service, SLX's process server served Chen by substituted service on February 16, 2026 at a residential address in Hacienda Heights, California. (See 2/18/2026 POS, ¶¶ 4–5.) Though Chen admits to living at the Hacienda Heights address previously, he moved out in 2022 and did not live at that address when the process server attempted service. (See Chen Decl., ¶ 7.)

Despite

Chen's representations in support of this motion, Chen has used the Hacienda Heights address in this litigation. For example, Chen sent a letter, dated April 13, 2026, to SLX's counsel and listed the Hacienda Heights address as the return address. (See Opp., Tu Decl., Exh. 3; see also 2d Opp., Tu Decl., Exh. 3.) As another example, Chen filed a form INT-300, Request for Interpreter, listing his name and the Hacienda Heights address in the first paragraph. (See 5/20/2026 INT-300 Request, ¶ 1.) Even if Chen did not reside at the Hacienda Heights address, the documentary evidence establishes that he continued to use that address as recently as May 20, 2026.

The court notes that a defendant may be served by substituted service at their “usual mailing address.” (Code Civ. Proc., § 415.20, subds. (a)–(b).) As such, the court finds service at the address was proper and should have given Chen actual notice.

Even

if Chen was properly served at the Hacienda Heights address, he may be eligible for relief under Section 473.5 provided that his failure to respond was neither willful nor due to inexcusable neglect. Chen states that he did not avoid service and that he only learned about this action

on April 10, 2026, when a friend informed him of the attempted service at the Hacienda Heights address. (See Chen Decl., ¶¶ 8–10.) Even if the court accepts as true Chen’s claim that he did not avoid service, his declaration does not provide a sufficient basis for the court to find that his inattention to service was excusable. (See Chen Decl., ¶ 10, only vaguely stating that his “failure to respond was the result of inadvertence, surprise, mistake, or excusable neglect [because he is] not fluent in English and require[s] a Mandarin interpreter in court[.]”) Thus, the court finds Chen failed to meet his burden of demonstrating that his lack of notice was not caused by inexcusable neglect.

Therefore,
the motion to set aside the entry of default is DENIED.

CONCLUSION

For
these reasons, the motion to set aside default and default judgment, if entered, is DENIED.